

IN THE CIRCUIT COURT OF BENTON COUNTY, MISSOURI

NSI 6, LLC,

Plaintiff,

v.

Case No. 26BE-CC00056

BENTON COUNTY, MISSOURI,

STEVE DALESKE, in his official capacity
as Presiding Commissioner of
Benton County, Missouri,

SCOTT HARMS, in his official capacity as
North Side District Commissioner of
Benton County, Missouri, and

LARRY BERRY, in his official capacity as
South Side District Commissioner of
Benton County, Missouri,

Defendants.

PLAINTIFF'S MOTION FOR PRELIMINARY INJUNCTION

COMES NOW Plaintiff NSI 6, LLC, by and through its undersigned counsel, and pursuant to Missouri Supreme Court Rule 92.02 hereby moves this Court for its entry of a preliminary injunction enjoining Defendants, their agents, servants, employees, and those persons acting in concert or participation therewith, from enforcing, applying, implementing, or threatening to enforce the August 10, 2026 “Order and Ordinance of County Commission of Benton County, Missouri—An Order and Ordinance Enacting a Temporary Moratorium on Data Centers Within Benton County, Missouri for Purposes of Due Diligence” against Plaintiff, or against the Property or Project (as defined in Plaintiff’s Verified Petition).

1. The grounds in support of this Motion are set forth in Plaintiff’s Motion for Temporary Restraining Order and Verified Petition, which are incorporated herein by reference.

2. Unless Defendants are enjoined as requested herein, Plaintiff will suffer immediate and irreparable injury, loss, and damage, for the reasons more particularly stated in Plaintiff's Motion for Temporary Restraining Order and Verified Petition.

3. Plaintiff has no adequate remedy at law.

4. There is a high likelihood of success on the merits for Plaintiff.

5. If this preliminary injunction be granted, the injury, if any, to Defendants, if final judgment be in Defendants' favor, will be inconsiderable and adequately indemnified by bond.

WHEREFORE, Plaintiff NSI 6, LLC prays this Court issue its Preliminary Injunction enjoining Defendants, their agents, servants, employees, and those persons acting in concert or participation therewith, from enforcing, applying, implementing, or threatening to enforce the August 10, 2026 "Order and Ordinance of County Commission of Benton County, Missouri—An Order and Ordinance Enacting a Temporary Moratorium on Data Centers Within Benton County, Missouri for Purposes of Due Diligence" against Plaintiff, or against the Property or Project; and for such other and further relief as the Court deems just and proper in the premises.

LOWTHER JOHNSON
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